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U.S. Department of State Diplomacy in Action

Uzbekistan

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Uzbekistan is an authoritarian state with limited civil rights. The Constitution provides for a presidential system with separation of powers between the executive, legislative, and judicial branches. In practice President Islam Karimov and the centralized executive branch that serves him dominate political life. First chosen president in a 1991 election that most observers considered neither free nor fair, Karimov had his stay in office extended to 2000 by a 1995 plebiscite. Parliament subsequently voted to make the extension part of Karimov's first term, thus making him eligible to run again in 2000. He was elected to a second term in January against token opposition with 92.5 percent of the vote under conditions that were neither free nor fair. The Oliy Majlis (Parliament) consists almost entirely of regional officials appointed by the President and members of parties that support the President. Despite constitutional provisions for an independent judiciary, the executive branch heavily influences the courts in both civil and criminal cases.

There is effective civilian control over the military. The Ministry of Interior (MVD) controls the police. The police and other MVD forces are responsible for most normal police functions. The National Security Service (NSS)--the former KGB--deals with a broad range of national security questions, including corruption, organized crime, and narcotics. The police and the NSS committed numerous serious human rights abuses.

The Government has stated that it is committed to a gradual transition to a free market economy. However, continuing restrictions on currency convertibility and other government measures to control economic activity have constrained economic growth and led international lending organizations to suspend or scale back credits. The economy is based primarily on agriculture and agricultural processing; the country is a major producer and exporter of cotton. It is also a major producer of gold and has substantial deposits of copper, strategic minerals, gas, and oil. The Government has made some progress in reducing inflation and the budget deficit, but government statistics understate both, while overstating economic growth. There are no reliable statistics on unemployment, which is believed to be high and growing. The Government is taking some modest steps to reduce the host of formal and informal barriers that constrain the nascent private sector.

The Government's poor human rights record worsened, and the Government continued to commit numerous serious abuses. However, there were positive human rights developments in a few areas. Citizens cannot exercise their right to change their government peacefully. The Government has not permitted the existence of an opposition party since 1993. Election and registration laws restrict the possibility that any real opposition parties form or mount a campaign. There were credible reports that security force mistreatment resulted in the deaths of several citizens in custody. Police and NSS forces tortured, beat, and harassed persons. The security forces arbitrarily arrested or detained pious Muslims and other citizens on false

charges, frequently planting narcotics, weapons, or forbidden literature on them. Prison conditions are poor, and detention can be prolonged. The judiciary does not always ensure due process and often defers to the wishes of the executive branch. Parliament passed a law on judicial reform that was awaiting presidential approval at year's end. The Government also demonstrated a commitment to permitting International Committee for the Red Cross (ICRC) access to detained persons and prisoners. Police and NSS forces infringed on citizens' privacy, including the use of illegal searches and wiretaps. Those responsible for documented abuses rarely are punished.

The crackdown that followed the explosion of five terrorist bombs in Tashkent on February 16, 1999, continued during 2000. Among those arrested and tried were persons with close links to avowed Islamist Uzbeks abroad who, the Government believes, were responsible for the bombings. However, other victims of the crackdown included members of the secular opposition, human rights activists, and thousands of overtly pious Muslims and members of Islamist political groups. While it is not possible to estimate the number of those arrested, observers believe that the scale surpasses any previous such action. The Moscow-based human rights group Memorial has documented over 1,400 cases of persons imprisoned between January 1999 and April 2000. The organization credibly estimates that the total number arrested and tried in that time frame was between 4,000 and 5,000. By year's end, well over 5,000 persons were in prison as a result of the crackdown.

The Government severely restricts freedom of speech and the press, and an atmosphere of repression stifles public criticism of the Government. Although the Constitution expressly prohibits it, press censorship continues, and the Government sharply restricts citizens' access to foreign media. A 1999 decree requires all Internet service providers to route their connections through a government server. The primary purpose of this measure, according to the Government, is to prevent access to information that the Government considers harmful. Despite the law, private Internet providers have proliferated during the year.

The Government limits freedom of assembly and association. The Government continues to ban unauthorized public meetings and demonstrations. The Government has not yet implemented a 1999 law that improves the formal legal framework for the formation, registration, and operation of nongovernmental organizations (NGO's). The Government continues to deny registration to opposition political parties as well as to other groups that might be critical of the Government. For example, the Ministry of Justice has denied repeated applications for registration of the Human Rights Society of Uzbekistan (HRSU) and the Independent Human Rights Organization of Uzbekistan (IHROU), citing technical deficiencies in the applications. Unregistered opposition parties and movements may not operate freely or publish their views. The Government restricts freedom of religion. The Government harassed and arrested hundreds of Islamic leaders and believers on questionable grounds, citing the threat of extremism. The Government tolerates the existence of minority religions but places strict limits on religious activities. Although the Government had registered over 174 minority religious communities by year's end, several others were prevented from registering by local officials. Unlike in 1999, university authorities did not expel students for wearing Islamic dress during the year.

The Government continues to voice rhetorical support for human rights, but does not ensure these rights in practice. Although the election, religion, and media laws contain elements that theoretically support human rights, in reality the Government does not respect such provisions. The Office of the Human Rights Ombudsman, which was formed in 1997, reports that it is assisting hundreds of citizens in redressing human rights abuses, the majority of which involve allegedly unjust court decisions and claims of abuse of power by police. The Ombudsman's office issued reports identifying the most serious types of violations of human rights by government officials; however, most of the successfully resolved cases were relatively minor. The Government pardoned and released imprisoned human rights activist Mahbuba Kasimova at year's end.

Domestic violence against women is a problem, and despite a constitutional prohibition, there continues to be significant traditional, societal discrimination against women. The Government undertook cooperation with women's NGO's. Trafficking in women and girls for the purposes of prostitution occurs. Workplace discrimination against some minorities persists. There are some limits on worker rights.

Beginning in August, insurgents from the Islamic Movement of Uzbekistan (IMU) conducted significant armed incursions in Uzbekistan and neighboring states. Over two dozen members of the Uzbek police and armed forces were killed in the conflict as were at least 30 insurgents. During the conflict, the Government ordered the evacuation of least five villages in the Surkhandarya region near the border with Tajikistan. After spending 2 months in a temporary camp, the villagers were transferred in November to a newly constructed settlement more than 200 kilometers away, where they complained to international observers of poor conditions and abusive treatment.

RESPECT FOR HUMAN RIGHTS

Section 1 Respect for the Integrity of the Person, Including Freedom From:

a. Political and Other Extrajudicial Killing

There were no confirmed reports of political killings; however, security forces committed killings. Security force mistreatment resulted in the deaths of several prisoners in custody. According to human rights activists and other observers, many of those killed in custody were interned at a new prison near Jaslik in Karakalpakstan, where conditions were thought to be extremely harsh. Nearly all the inmates of this facility, which opened in the spring of 1999, were accused of religious extremism. Although there is specific information available on only a handful of deaths due to mistreatment in custody, human rights observers and relatives of prisoners claim that the number of such cases throughout the country during the year reached several dozen. Law enforcement officials warned families not to talk about their relatives' deaths. Government officials acknowledge that some inmates of Jaslik died, but attribute the deaths to illness and the extremely hot climate rather than mistreatment.

The country's regulations require that every death in custody be investigated by a medical examiner. In most cases, deaths apparently due to beating are ascribed to heart failure. However, in June Batirjon Karimov, a guard at a prison in Almalyk, was convicted and sentenced to 6 years in prison for beating a prisoner to death. The court convicted Karimov of Articles 103 and 104 of the Criminal Code: Driving someone to suicide and intentionally causing severe bodily harm, respectively. The victim, Akmal Latipov, who had just been brought to the prison, allegedly slashed his wrist with a razor when Karimov began to beat him, in order to escape the beating. A forensic medical examination established the cause of Latipov's death to be blows to the head inflicted by Karimov.

According to the World Organization Against Torture, Rustam Norbaev, a possible member of the political Islamic movement Hizb ut-Tahrir, was arrested on March 13 and died in pretrial detention in Yakkabaga on March 18, allegedly after being tortured. Officials claimed that Norbaev hanged himself.

Negmat Karimov, who was sentenced in July 1999 to 20 years in prison for alleged involvement in the terrorist conspiracy behind the 1999 Tashkent bombings, died in prison in Navoi on March 22. According to his parents, his body showed multiple signs of beating. Karimov also was convicted on charges related to religious extremism.

In late December, Amanullah Nosirov, a member of Hizb ut-Tahrir convicted in 1999, died in prison in Navoi. According to acquaintances of the deceased, he died of injuries sustained while being beaten. Nosirov was the brother of Haffezullah Nosirov, an alleged leader of Hizb ut-Tahrir who was convicted in March (see Sections 1.d. and 1.e.).

Hazratkul Kodirov, a former resident of a village near the Tajik border that had been evacuated during clashes with the IMU, died near the end of December, allegedly from injuries sustained during police interrogation (see Section 2.d.). (According to other residents of the village, police used beatings to force up to 39 men to confess to collaborating with the IMU.) Kodirov's brother alleged that the body bore 50 small holes and that the genital area was "destroyed." Hazratkul had given an interview to the British Broadcasting Corporation (BBC) in November deploring conditions in the resettlement camp.

Shukhrat Parpiev, who was sentenced in December 1998 to 15 years in prison, died in the Jaslik prison on May 5. According to an acquaintance, Parpiev was not religious, but had been arrested because he was seen with a known religious figure suspected of extremism. Parpiev's body allegedly was bruised badly, and had a broken clavicle, crushed skull, and broken ribs.

In an open letter to the President, 33 Tashkent residents protested the military hazing death on June 13 of Dmitriy Popov, a recruit who suffered from heart problems. Popov was allegedly beaten by senior soldiers on June 7. The HRSU commented that such deaths were not uncommon in the military. At year's end, military prosecutors were planning on bringing a criminal case against five soldiers who allegedly participated in the beating.

There were no reported politically motivated killings by the insurgent IMU, although there were casualties on both sides of the conflict. During and after the armed incursions of August and September, Uzbek military forces laid mines on the border with Tajikistan. Press reports indicate that such mines have killed at least 13 Tajik civilians. The Ministry of Defense asserts that all minefields are clearly marked and that it has informed the Tajik Government of their locations in accordance with international norms.

b. Disappearance

There were no new reports of politically motivated disappearances.

It is widely believed that Imam Abidkhon Nazarov, missing since March 1998, fled the country to avoid arrest and was not abducted by security forces. There were no reported developments in the 1995 disappearance of Imam Abduvali Mirzaev or in the 1997 disappearance of his assistant, Nematjon Parpiev. Most independent observers believe that the two missing Islamic activists are either dead or in NSS custody.

There was one report of a person who has disappeared after being taken into custody. Bakhodir Khasanov, an instructor of French at the Alliance Francaise, was apprehended by plainclothes officers in front of witnesses on July 17. Authorities have not yet acknowledged that he is being held (see Section 1.d.).

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

Although the law prohibits these practices, both police and NSS routinely beat and otherwise mistreat detainees to obtain confessions, which they then used to incriminate the detainees. Both the frequency of allegations of torture and the alleged severity of the treatment increased during the reporting period.

In December Human Rights Watch (HRW) released a major report on torture in Uzbekistan that details dozens of allegations based on interviews with victims and their families. The report claimed that the number of allegations and the degree of brutality of torture were increasing. The most common torture techniques are beating, often with blunt weapons, and asphyxiation with a gas mask. There were numerous unverifiable reports of interrogators raping detainees with objects such as bottles, and of threatening to rape both detainees and their family members.

Although it is routine for police to beat confessions out of detainees, anecdotal evidence suggests that those suspected (sometimes only because of their piety) of Islamist political sympathies are treated more harshly than criminals.

According to his family, noted writer Mamadali Makhmudov, who claimed that he and five other defendants were tortured during 5 months of detention prior to his August 1999 trial, continued to suffer mistreatment in prison. Family visits to him in Jaslik prison in May and June revealed that his fingernails had been pulled out and that he was in generally very poor health. On July 4, the Interior Ministry said that Makhmudov's health was satisfactory and that he did not request medical treatment. In December acquaintances reported that Makhmudov nonetheless had been transferred to a hospital prison.

In a trial concluded in the Akmol Ikramov regional court in Tashkent on September 6, 15 members of Hizb ut-Tahrir all alleged that they had been tortured during pretrial detention. According to those attending the trial (international monitors were barred from the courtroom), the defendants alleged that guards and interrogators had used beatings and electricity, and had forced them to sign blank statements. Several alleged that guards had raped them. The defendants were sentenced to between 12 and 16 years each.

Prison conditions are poor, and worse for male than for female prisoners. Males and females are housed in separate facilities. Prison overcrowding is a problem. Human rights activists reported that the incarceration of 10 to 15 persons in cells designed for 4 is common. Tuberculosis and hepatitis are endemic in the prisons, making even short periods of incarceration potentially deadly. Reportedly there are severe shortages of food and medicines, and prisoners often rely on visits by relatives to obtain both. Brutal treatment by guards and an especially harsh and polluted desert environment were said to make conditions at Jaslik prison the worst in the country. By year's end, however, human rights observers had learned from witnesses that conditions in Jaslik had improved substantially. According to the Committee for the Legal Assistance of Prisoners, there are between 500 and 800 total inmates at Jaslik. Although the law allows all prisoners to have occasional family visitors, the remoteness of Jaslik makes such visits rare and difficult. Most of the prisoners transferred to Jaslik were convicted for their alleged participation in unauthorized Islamic groups. The Government operates labor camps, where conditions of incarceration have been reported to be less severe than in prisons.

An amnesty signed by the President on the occasion of the September 1 Independence Day, may affect up to 25,000 of the country's 63,000 prisoners, according to government press releases. The amnesty does not apply to those convicted of political crimes. While there was no official report on the number of prisoners actually released, human rights activists estimate it to be around 10,000.

The Government in December decided it would permit prison visits by human rights monitors such as the International Committee of the Red Cross (ICRC).

d. Arbitrary Arrest, Detention, or Exile

Security forces continued to arrest and detain individuals arbitrarily, without warrant or just cause. A Soviet-era detention law provides that police may hold a person suspected of committing a crime for up to 3 days. At the end of this period, the detained person must be declared officially a suspect, charged with a crime, or released. A person officially declared a suspect may be held for an additional 3 days before charges are filed. A prosecutor's order is required for arrests, but not for detentions, prior to the filing of charges. In practice these legal protections frequently are ignored. In some cases, police circumvent the rules by claiming that the detainee is being held as a potential witness and not as a suspect; there are no regulations concerning the length of time witnesses may be detained. A court date must be set within 15 days of arrest (or filing of charges) and the defendant may be detained during this period. A defendant may not have access to counsel while in detention but only after the first interview with an investigator. Once the trial date is set, detainees deemed not to be violent may be released on their own recognizance pending trial. No money need be posted as bond, but in such cases the accused usually must sign a pledge not to leave the city. In practice this procedure rarely is used. During the period between arrest and trial, defendants are almost always kept in pretrial detention, which has been known to last as long as 2 years.

In the March trial in Guliston of Hizb ut-Tahrir activist Haffezullah Nosirov and 11 others, the defendants were tried on average 6 months after arrest. Many claimed that authorities used the interim period to torture them into signing confessions. The trial marked the first time since June 1999 that international observers were permitted to attend a trial of accused religious extremists.

In ordinary criminal cases, the police generally are capable of identifying and arresting only those reasonably suspected of the crime. However, both the police and NSS are far less discriminating in cases involving perceived risks to national security. Prosecutors have brought charges against at least 140 persons in connection with the bombings, including at least 12 in

during this year. All those tried have been convicted. Twenty of these were sentenced to death, with most reportedly already executed. Hundreds of other defendants have also been convicted of terrorism, most allegedly linked to those convicted of the bombings or other actions attributed to the IMU.

It is common government practice to violate the human rights of both immediate and extended family members of those the Government has targeted. For example, Bakhodir Khasanov, an instructor of French at the Alliance Francaise, was detained and held incommunicado in the basement of the Ministry of the Interior on July 17. This is the fourth time that authorities have detained Khasanov. The security services' interest in Khasanov apparently stems from the fact that many in the Khasanov family are pious Muslims, although Bakhodir himself has claimed that he is not especially religious. Bakhodir's father and brother are both currently imprisoned. His brother Ismail was convicted in August 1999 for alleged links to Islamic extremists and was retried on additional charges of being involved in events in Yangiabad, although those events took place while he was in prison. In November 1999, police arrested Khasanov's 70-year-old father after planting Hizb ut-Tahrir leaflets on him. He signed a confession after police forced him to watch them beating his son Ismail, and is now serving 3 years in prison.

Kamoletdin Sattarov of Andijon was convicted of anti-State activity in July after police allegedly planted two Hizb ut-Tahrir leaflets on him. His brother Muradjon was jailed in 1999 for membership in Hizb ut-Tahrir. Kamoletdin has admitted that Muradjon had gotten involved with the group but denied that he shared his brother's political or religious passions. Investigators in Kamoletdin's case found individual appeal forms of the U.N. High Commissioner for Human Rights in his home and used them as evidence against him (see Section 4).

All male members of the family of missing Imam Abidkhon Nazarov remain in jail, and allegedly are beaten periodically by interrogators trying to learn Nazarov's whereabouts. Similarly, three brothers of exiled democratic opposition leader Mohammed Solikh are imprisoned because of their family ties (see Sections 1.c. and 3).

Family members of missing Andijon Imam Abdu Kori Mirzaev reported that they were harassed and kept under constant surveillance.

According to NGO reporting, Uzbek Imam Khadji Khudjaev was arrested by Russian police in August, apparently at the request of the Uzbek Government, and was extradited to Uzbekistan in November to face charges of involvement in the February 1999 Tashkent bombings.

Police in Nukus allegedly planted drugs on a Baptist pastor in July, and held him without charge until his release in late September (see Section 2.b.).

Police routinely planted small amounts of narcotics, weapons, ammunition, or Islamic literature on citizens either to justify arrest or to extort bribes. The most frequent victims of this illegal practice have been suspected members of nonofficial Islamic organizations such as Hizb ut-Tahrir. They usually were sentenced to between 15 and 20 years in prison. The total number of those either tried and convicted or still in pretrial detention is unknown, but human rights activists contend that there are well over 1,000 and perhaps several thousand. Many of those in detention are political detainees.

In December the Parliament passed judicial reform legislation, which, according to an international NGO that reviewed the laws, mandates notable, if incremental improvements. The reforms included modifications to the criminal justice system to make it adversarial and reduce the power of the procuracy, improvements in the appeals process to ensure greater access to the courts, and increases in the independence of the courts from the executive branch of government.

In general, the Government does not hold political detainees indefinitely, but brings them to trial eventually. Because there is no free press or public record of arrests, it is not possible to determine the number of detainees awaiting trial. Estimates by human rights activists are usually in the range of several thousand.

The Government does not use forced exile.

e. Denial of Fair Public Trial

The Constitution provides for an independent judicial authority; however, the judicial branch takes its direction from the executive branch and has little independence in practice. Under the Constitution, the President appoints all judges for 5-year terms. They may be removed for crimes or failure to fulfill their obligations. Power to remove judges rests with the President, except for Supreme Court judges, whose removal also must be confirmed by Parliament.

The system of courts of general jurisdiction is divided into three tiers: District courts, regional courts, and the Supreme Court. In addition a Constitutional Court is charged with reviewing laws, decrees, and judicial decisions to ensure their compliance with the Constitution. Military courts handle all civil and criminal matters that occur within the military. There is a system of economic courts on the regional level that deals with economic cases between judicial and legal entities.

Decisions of district and regional courts of general jurisdiction may be appealed to the next level within 10 days of ruling. The Criminal Code has reduced the list of crimes punishable by death to murder, espionage, and treason, eliminating the economic crimes that were punishable by death in the former Soviet code. Officially, most court cases are open to the public but may be closed in exceptional cases, such as those involving state secrets, rape, or young defendants. However, except for the first trial in June 1999, all trials of those suspected of involvement in the February 16 terrorist bombings were closed to international observers and the public on security grounds. In similar fashion, many trials of alleged Islamic extremists have been closed. International trial monitors or foreign diplomats only rarely are permitted to observe court proceedings.

State prosecutors play a decisive role in the criminal justice system. They order arrests, direct investigations, prepare criminal cases, and recommend sentences. If a judge's sentence does not agree with the prosecutor's recommendation, the prosecutor has a right to appeal the sentence to a higher court. There is no protection against double jeopardy. Judges whose decisions have been overturned on more than one occasion may be removed from office. Consequently, judges rarely defy the recommendations of prosecutors. As a result, defendants usually are found guilty.

The Government still uses the Soviet practice of trial by a panel of three judges: one professional judge and two lay assessors who serve 5-year terms and are selected from workers' collectives. The judge presides and directs the proceedings. However, in practice, judges often defer to the Government and its prosecutors on legal and other matters. Defendants have the right to attend the proceedings, confront witnesses, and present evidence. The State provides legal counsel without charge, but by law the accused also has the right to hire an attorney. In practice the right to an attorney often is violated and there are numerous examples of denial of this right.

In a March trial of 48 alleged members of Hizb ut-Tahrir in Termez, the judge allegedly appointed the police investigator who developed the prosecution's case as the defense attorney for six of the defendants. Police allegedly tortured detained Imam Abduvakhid Yuldashhev on at least two occasions in August and September, to force him to sign statements refusing the services of defense attorneys.

The Government typically held unannounced trials of large groups of those alleged to be extremists, and rarely let international observers attend. Human rights observers contended that these groupings of defendants were arbitrary, since the prosecution only occasionally argued that those on trial actually were connected to one another. Defendants often claimed that the confessions on which the prosecution typically based its cases were extracted by torture. Judges ignored these claims and invariably convicted the accused, handing down severe sentences--usually from 15 to 20 years' imprisonment. Torture and mistreatment of detainees are explicitly outlawed. Lawyers may, and occasionally do, call on judges to reject confessions thus extracted and to investigate claims of such treatment. There has been no report of a judge opening an investigation into claims of torture.

In one such trial that ended on April 14 in Tashkent, 12 defendants were convicted of anti-State activity, belonging to illegal groups, and other charges. Two of the defendants were sentenced to 20 years, and eight more to 17 years. One defendant, Abdulaziz Mavlianov, an employee of the Tashkent office of the ICRC, allegedly confessed only to having given about \$15

(10,000 soum) and some publicly available information to the main defendant, alleged Islamist activist Toirjon Abdusamatov. At his trial, Mavlianov renounced that confession, which he had never signed. Despite the relatively innocuous nature of the alleged activities that led to his conviction, he was sentenced to 17 years in prison.

In practice most defense lawyers are unskilled at defending their clients. Courts often do not allow all defense witnesses to be heard, and written documents are given more weight than courtroom witnesses. In the March trial of Haffezullah Nosirov and 10 other alleged members of Hizb ut-Tahrir, defendants were convicted in part on the basis of written testimony from Bakhrom Abdullaev, an alleged terrorist who reportedly had been executed in January. Furthermore, the judge in the case refused the defense's request to question the other (living) witnesses whose written statements formed the remainder of the prosecution's case. In his retrial, Sattarov was sentenced to 10 years in prison, which was 1 year more than his original sentence.

In November the Government staged a trial of 12 alleged conspirators in the 1999 Tashkent bombings, 9 of whom were being tried in absentia. Since the court made no formal effort to notify the defendants directly of the charges against them, the proceedings violated the International Convention on Civil and Political rights. Although the State appointed lawyers for the missing defendants, they put up only a token defense, lasting less than 3 hours after a 2-week prosecution case. Several of the lawyers stated openly that they were unable to defend their clients because they had no opportunity to consult with them. Two of the absent defendants, IMU leaders Tohir Yuldashev and Jumaboy Khojiev (a.k.a. Juma Namangani), were sentenced to death. Other defendants received sentences of between 12 and 20 years in prison.

The Constitution provides a right of appeal to those convicted; however, such proceedings usually are formalistic exercises that confirm the original conviction. For example, the appeal of Imam Abdurakhim Abdurakhmanov on August 8 lasted only 20 minutes, and the judge did not permit testimony. Abdurakhmanov, who had been sentenced to 17 years in prison and reportedly was subjected to torture prior to trial, was not allowed to be present at the appeal. However, a judge in the Andijon regional court, after hearing an appeal in August, ordered a retrial of Kamoletdin Sattarov, on the grounds that he was not represented properly at the original trial earlier that month.

Authorities arrested and tried unfairly relatives of suspects and members of opposition groups (see Sections 1.d. and 3).

In April the Moscow-based human rights organization Memorial published a list of over 1,400 individuals arrested and convicted for political and religious reasons from January 1999 to April 2000 (see Section 2.c.). The organization credibly estimates that, including those it can document, a total of between 4,000 and 5,000 such persons have been imprisoned. While most were convicted of conspiracy against the constitutional order, many were convicted of nonpolitical offenses such as tax evasion, misappropriation of funds, or illegal possession of narcotics or firearms. It is widely believed that in the latter cases, arresting officers planted the incriminating materials.

On September 5, the Chairman of the Supreme Court claimed that there were 2,000 persons in jail for crimes against the State. At the same news conference and again the following day, the Minister of Justice explicitly rejected the notion that these or any other prisoners could be classified as "political," on the grounds that all had been tried and convicted of crimes. However, the fact that nearly all convictions are based on forced confessions makes it impossible to determine what percentage of those convicted actually violated the law. Moreover, the alleged "crimes," as interpreted by the courts, encompass criticism of the Government and possession of religious beliefs that the Government defines as extremist. Therefore, most of those convicted of crimes against the State are political prisoners.

In December the Government proposed a draft agreement with the ICRC allowing the ICRC access to all prisoners. The draft agreement was modeled after the ICRC's own proposals and met all ICRC conditions for undertaking a program of prison visits.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

Authorities infringe on these rights. By law only a prosecutor may issue a search warrant or authorize electronic surveillance. There is no provision for a judicial review of such warrants. Security agencies routinely monitor telephone calls and employ surveillance and wiretaps in the cases of persons involved in opposition political activities.

A Law on Freedom of Conscience and Religious Organizations and other legislation (see Section 2.c.) prohibits private teaching of religion. Students who in 1997 and 1998 were expelled from schools for wearing religious dress were not allowed to re-enroll in 2000 (see Section 2.c.). Unlike in 1999, students were not arrested for wearing religious dress during this year.

Police arrested, detained, and beat family members of suspects that they were seeking (see Sections 1.c and 1.d.). Authorities also frequently forced relatives of alleged religious extremists to undergo public humiliation at neighborhood assemblies organized for that purpose. For example, the mother of IMU leader Juma Namangani was summoned to a school auditorium in late August where an assembly of neighbors confronted her. Relatives of soldiers killed in the insurgency insulted her and smeared her face with black paint. Local leaders shamed her for bringing Namangani into the world until she tearfully apologized and cursed her son.

Both the wife and mother of missing Imam Abidkhon Nazarov were forced to undergo similar public humiliation in February and March.

The Government does not allow general distribution of foreign newspapers and other publications. However, two or three Russian newspapers and a variety of Russian tabloids and lifestyle publications are available. A modest selection of other foreign periodicals is available in Tashkent's major hotels, and authorized groups can obtain foreign periodicals through subscription. The authorities do not permit rebroadcast of Russian programming that is critical of the Government (see Section 2.a.).

In May postal authorities confiscated a package addressed to human rights activist Mikhail Ardzinov. The package contained documents from a Moscow human rights conference as well as copies of the Erk Party newspaper. In the notice sent to Ardzinov, authorities claimed that the material was confiscated on the basis of a statute prohibiting the mailing of items of artistic or cultural significance.

In March police confiscated six copies of the Uzbekistan chapter of the 1999 HRW World Report from a HRW representative who was observing the trial of the 12 men on trial for membership in Hizb ut-Tahrir (see Section 1.d.). According to an international NGO, the presiding judge at the trial characterized the distribution of the report as the clandestine distribution of leaflets. In November customs authorities confiscated several copies of the journal of the unregistered Birlik Democratic Movement that had been mailed to a private citizen. Customs claimed that the material was illegal and anticonstitutional. In the same month, Customs opened mail sent from HRW's New York office to its Tashkent office and confiscated several copies of a published list of political and religious prisoners in Uzbekistan compiled by the Moscow-based human rights organization Memorial. In explaining the confiscation, a representative of the Ministry of Foreign Affairs told HRW that it took issue with the content of the Memorial report.

Section 2 Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

The Constitution provides for "freedom of thought, speech, and convictions;" however the Government continues to restrict these rights severely.

A 1991 law against "offending the honor and dignity of the President" limits the ability to criticize the President. Ordinary citizens remain afraid to express views critical of the President and the Government in public. The 1998 Mass Media law formally provides for freedom of expression, protects the rights of journalists, and reiterates the constitutional ban on censorship. Nonetheless, several articles of the law, and the lack of due process provided for in their implementation, allow the Government to use the law to silence critics. The law established an interdepartmental government commission which

issues licenses to approved media outlets. In May a new law changed the term of validity of these licenses from 1 year to 5 years, a move welcomed by those in the media. The interdepartmental commission is empowered to revoke licenses and close media outlets without a court judgment.

According to the Mass Media Law, journalists are responsible for the accuracy of the information contained in their news stories, potentially subjecting them to prosecution. The law prohibits stories that incite religious confrontation and ethnic discord or advocate subverting or overthrowing the constitutional order (see Section 2.b.).

The Constitution prohibits censorship; however, it is widely practiced and the Government tolerates little, if any, criticism of its actions. The last opposition newspaper to be published was that of the Erk Democratic Party, which has been banned within the country since 1993 but is published sporadically abroad.

There are no private publishing houses, and government approval is required for all publications. Newspapers are generally printed by state-owned printing houses, which refuse to print any edition that does not bear the prior approval of the Committee for the Protection of State Secrets. In these circumstances, journalists who want to ensure that their work is published practice self-censorship.

In April authorities closed an independent Urgench newspaper, Panorama (circulation 500). Panorama's publisher, Konstantin Aksianov, had purchased his own presses and thus was able to produce and distribute the newspaper without censorship by the Committee for the Protection of State Secrets. However, private printing presses require licenses and in April, the State Press Committee, without explanation, revoked Panorama's license to print and warned other printers not to print the newspaper.

Information remains very tightly controlled. The Uzbekistan Information Agency cooperates closely with the presidential staff to prepare and distribute all officially sanctioned news and information. Nearly all newspapers are organs of government ministries. Private persons and journalist collectives may not establish newspapers unless they meet the media law's standards for establishment of a "mass media organ," including founders acceptable to the Government. A handful of private newspapers containing advertising, horoscopes, and similar features, but no news or editorial content, are allowed to operate without censorship. Limited numbers of foreign periodicals are available (see Section 1.f.).

Four state-run channels that fully support the Government and its policies dominate television broadcasting. A cable television joint venture between the state broadcasting company and a foreign company broadcasts the Hong Kong-based Star television channels, including the BBC, Deutsche Welle, and Cable News Network world news, to Tashkent and a few other locations. Access to cable television is beyond the financial means of most citizens.

There are between 30 and 40 privately owned local television stations and 3 privately owned radio stations. Generally, broadcasters practice self-censorship and enjoy some leeway in reporting critically on local government.

The interdepartmental commission closed two television stations in 1999. One of them was allowed to reopen in 2000. Officials claimed that the stations did not meet technical requirements for relicensing and that there was no political element to the closings. Foreign observers noted that the two were among the most independent in the country and interpreted the closings as a warning to other broadcasters to be careful of their content. Shukhrat Babajanov, the owner of ALC, a station in Urgench that has been prohibited from reopening, unsuccessfully sued the Government in February for damages resulting from the station's closing. He appealed and lost again in March. ALC had also lost its registration temporarily in 1997, allegedly for technical violations of regulations. It was believed widely at the time that the real reason for the 1997 closure was that the owner had been a member of the Erk political party in the early 1990s. Babajanov and his former employees were subjected to harassment and veiled threats by police during the summer.

As these cases illustrate, enforcement of the registration and licensing requirements can be strict, and the Government's implementation of the media law does not function smoothly. Because the registration committee meets irregularly and because the annual re-registration requirement has only recently been revised, up to one half of independent television

stations have been forced to operate with expired licenses, making them vulnerable to a government shut down. During the 1999 election season, owners reportedly believed that the Government was intentionally delaying re-registration in order to ensure that the stations broadcast nothing unfavorable. However, in 2000 most owners reported that tensions between them and the Government eased substantially.

Private radio and television broadcasters formed an independent professional association in 1998. The association resisted both generous incentives and heavy pressure from the Government to elect the Government's candidate as chairman. Government officials openly threatened members of the group and the opposition candidate who was elected. Since that time, the Government has arbitrarily denied the group's registration application on seven occasions, three during the last year. In one unsuccessful effort to win registration, the association even changed its name from ANESMI to MEDIA. Ministry of Justice officials reportedly advised the group privately that it never would be registered. The lack of registration effectively restricts MEDIA's ability to attract international funding and operate legally.

Radio Free Europe/Radio Liberty and the Voice of America are not permitted to broadcast from within the country, despite the Government's 1992 contractual agreement to allow this activity. The Government allows both organizations to have correspondents in the country. The BBC World Service was required to broadcast on a very low FM frequency that most radios would not be able to receive, and then only after the BBC had agreed on paper to restrictions amounting to self-censorship. (However, observers agree that there is no evidence that the BBC actually engages in self-censorship.) The World Service is permitted to broadcast only 2 hours per day: Two 30-minute broadcasts per day in Uzbek, and two 30-minute broadcasts per day in Russian, 7 days a week.

Since February 1999, all Internet service providers have been required to route their connections through a state-run server. The avowed main purpose of this directive was to prevent the transmission of what the State considers to be harmful information, including material advocating or facilitating terrorism, material deemed hostile to the constitutional order, and pornography. By year's end, the Government had re-routed all but one provider, but did not yet possess the equipment and expertise necessary to complete implementation of the decree. The Government has issued regulations and taken technical steps to filter access to content that it considers objectionable. Despite these restrictions, the availability of Internet access has expanded as the number of service providers and Internet cafes have grown.

The Government has granted academic institutions a degree of autonomy, but freedom of expression still is limited.

b. Freedom of Peaceful Assembly and Association

The Constitution provides for the right of peaceful assembly; however, it also states that the authorities have the right to suspend or ban rallies, meetings, and demonstrations on security grounds, and in practice the Government restricted the right of peaceful assembly. The Government must approve demonstrations but does not grant permits to demonstrators routinely. In November 1999, a group of 30 to 40 veiled Muslim women gathered in front of the office of the Tashkent hokim (local governor) to protest the incarceration of their relatives. The police ordered them to disperse after refusing their request to meet with the hokim. Some members of the group report that they have been under intermittent surveillance since that time. In August shopkeepers at a Tashkent bazaar spontaneously took to the streets to protest a rise in rental fees set by the Government. Police responded to contain the crowd, but no violence was reported.

The Constitution provides for the right of freedom of association; however the Government restricts the exercise of this right. The Government refuses to register opposition political parties and movements. The Constitution places broad limitations on the types of groups that may form and requires that all organizations be registered formally with the Government in accordance with procedures prescribed by law. A 1996 analysis by foreign legal observers concluded that, while the Law on Political Parties provides theoretical protections for minority parties and permits a wide range of fund raising, it also gives the Ministry of Justice broad powers to interfere with parties and to withhold financial and legal support to those opposed to the Government. There are no registered opposition parties (see Section 3).

In the early 1990's, the Government repeatedly denied the attempts by the Birlik Movement and Erk Party to register. Harassment by security forces drove the leaders of these organizations into voluntary exile. These organizations made no attempt to register during the year, reportedly because their remaining adherents were afraid of government reprisals.

The Constitution and a 1991 amendment to the law on political parties ban parties of an ethnic or religious nature. Authorities cited these statutes in denying registration to the Islamic Renaissance Party (IRP) in 1992. In the early 1990's, opposition activists announced the formation of the religious Adolat-True Path Party but never pursued formal registration, claiming that their members were afraid of government reprisals. Leaders and members of these parties, denied a voice in the political process and forced to flee repression, now form the core of the IMU, which launched an armed insurgency in Uzbekistan and neighboring countries during the year.

The Law on Public Associations as well as the Law on Political Parties prohibits registration of organizations whose purpose includes subverting or overthrowing the constitutional order, as well as organizations whose names already are registered. In the past, officials have used the latter provision to block human rights NGO's and independent political parties from registering by creating another NGO or party with the identical name.

The Government has refused to register the two principal independent human rights organizations. The Human Rights Society of Uzbekistan sought registration unsuccessfully four times between 1992 and 1996. During the year, authorities refused to approve a visa to permit the HRSU's leader-in-exile to return to the country and to preside over a new founding convention, the required first step for a new registration application. In April authorities refused permission for the HRSU to host an international human rights conference in Tashkent (see Section 4).

The Independent Human Rights Organization of Uzbekistan (IHROU), headed by longtime human rights activist Mikhail Ardzinov, held its founding convention and filed registration papers in 1997, but the Government has not yet formally approved or denied the application. In both cases, the Government claims that the registration applications were not made properly and need to be resubmitted. Neither the HRSU nor the IHROU resubmitted applications during the year; there was no indication that they would be registered. The Government's repeated refusals to register these organizations appear politically motivated. The Government has approved the registration of only one human rights NGO, the Committee for Protection of Individual Rights, which was formed with government support in 1996.

The process for government registration of NGO's and other public associations is also difficult and time-consuming, with many opportunities for obstruction. Although unregistered organizations often can disseminate literature, hold meetings, and use letterhead stationery without government interference, they do not exist as legal entities and have no real access to the media or government.

A law on nongovernmental, noncommercial organizations passed in April 1999 provides a relatively benign legal framework for their registration and functioning. In particular the requirements for registration are simpler than they had been under previous legislation. However, the law contains several vaguely worded provisions that, in practice, may result in arbitrary enforcement of decisions harmful to NGO's. The real effect of the law depends on the implementing regulations, which had not yet been promulgated more than 11/2 years after passage of the law.

Nonpolitical associations and social organizations usually may register, although complicated rules and a cumbersome government bureaucracy often make the process difficult. Some evangelical Christian churches (see Section 2.c.) found it difficult to obtain registration.

c. Freedom of Religion

The Constitution provides for freedom of religion and for the principle of separation of church and state; however, in practice the Government only partially respects these rights. The Government perceives unofficial Islamic activity as an extremist security threat and outlaws it. During the year, the Government arrested hundreds if not thousands of members of such groups and sentenced them to between 15 and 20 years in jail. The Government permits persons affiliated with mainstream

religions, including approved Muslim groups, Jewish groups, the Russian Orthodox Church, and various other denominations, such as Catholics and Lutherans, to worship freely and generally registers more recently arrived religions. However, the religion law forbids or severely restricts activities such as proselytizing and importing and disseminating religious literature.

The Government is secular and there is no official state religion. Although the laws treat all religious confessions equally, the Government shows its support for the country's Muslim heritage by funding an Islamic university and subsidizing citizens' participation in the Hajj. The Government promotes a moderate version of Islam through the control and financing of the Spiritual Directorate for Muslims (the Muftiate), which in turn controls the Islamic hierarchy, the content of imams' sermons, and the volume and substance of published Islamic materials.

In May 1998, the Parliament passed two laws that restrict religious activity. The Law on Freedom of Conscience and Religious Organizations provides for freedom of worship, freedom from religious persecution, separation of church and state, and the right to establish schools and train clergy. However, the law also severely limits religious activity. It restricts religious rights that are judged to be in conflict with national security, prohibits proselytizing, bans religious subjects in public schools, prohibits private teaching of religious principles, forbids the wearing of religious clothing in public by anyone other than clerics, and requires religious groups to obtain a license to publish or distribute materials.

The second legislative change enacted in May 1998 consisted of a series of revisions to the Criminal and Civil Codes that stiffened the penalties for violating the religion law and other statutes on religious activities. It provided for punishments for activities such as organizing a banned religious group, persuading others to join such a group, and drawing minors into a religious organization without the permission of their parents.

The Criminal Code was amended again in May 1999 with two changes that affected religious freedom. The changes draw a distinction between "illegal" groups, which are those that are not registered properly, and "prohibited" groups, which are banned altogether. The first measure makes it a criminal offense punishable by up to 5 years in prison to organize an illegal religious group or to resume the activities of such a group (presumably after being denied registration or being ordered to disband). Furthermore, the measure punishes any participation in such a group by up to 3 years in prison. The second measure sets out penalties of up to 20 years in prison and confiscation of property for "organizing or participating" in the activities of religious extremist, fundamentalist, separatist, or other prohibited groups. In practice, the courts ignore the theoretical distinction and frequently convict members of disapproved Muslim groups under both statutes.

The Religion Law requires all religious groups and congregations to register and provides strict and burdensome criteria for their registration. In particular it stipulates that each group present a list of at least 100 Uzbek citizen members (compared with the previous minimum of 10) to the local branches of the Ministry of Justice. This provision enables the Government to ban any group simply by denying its registration petition. Government officials designed the law to target Muslims who worship outside the system of state-organized mosques. A special commission created in August 1998 may grant exemptions to the religious law's strict requirements and register groups that have not been registered by local officials. The commission has granted exemptions to 51 such groups, including congregations with fewer than 100 Uzbek members. However, no formal procedures or criteria have been established to bring a case before this commission.

In a February 29 roundtable on religious freedom, Government officials (from the Committee on Religious Affairs, Parliament, and the National Center for Human Rights) called for clarifications that would bring religion law and practice into line with the International Covenant on Civil and Political Rights, and on May 25 President Karimov suggested that the Parliament consider improvements to the religion law. However, no action was taken by year's end.

In August an expert from the U.N. Committee on the Elimination of Racial Discrimination noted the serious restrictions on freedom of religion in Uzbekistan, targeting primarily Muslims worshipping outside the state-organized mosques.

Christian churches generally are tolerated as long as they do not attempt to win converts among ethnic Uzbeks. Christians who are ethnic Uzbeks are secretive about their faith and rarely attempt to register their organizations. Christian congregations that are of mixed ethnic background are reluctant to list their Uzbek members on registration lists due to fear

of incurring official displeasure. Since the law prohibits participation in unregistered groups, some minority churches have not submitted registration applications because they know that they are unable to comply with the law's requirements and prefer not to identify themselves to the authorities. Although church leaders cite high registration fees and the 100-member rule as obstacles to registration, the most frequent problem is the lack of an approved legal address, which is required in order to submit an application. Some groups have been reluctant to invest in the purchase of a property without assurance that the registration would be approved. Others claim that local officials arbitrarily withhold approval of the addresses because they oppose the existence of Christian churches with ethnic Uzbek members.

In August 1999, the central Government undertook to register minority religious groups whose applications had been blocked by local officials. Twenty churches received their registration immediately, and most new applications since that time have been approved; however, there have been exceptions. A Baptist congregation in Gazalkent attempted to register unsuccessfully throughout the year. Representatives of the group claimed that local officials were blocking its registration. The deputy mayor of Gazalkent allegedly told church leaders at one point that its application might be approved if it removed from its membership list all names of ethnic Uzbek origin. Another Baptist congregation in Guliston was denied registration in December ostensibly on the grounds that its proposed church was in a residential area. Although two Jehovah's Witness congregations are registered, eight others that have attempted to register during the last year were unsuccessful. Church officials believe that the fact that many members of these groups are Uzbek nationals is at the root of the bureaucratic obstructionism that they are facing. The Committee on Religious Affairs (CRA) denied the Greater Grace Christian Church of Samarkand permission to have a Finnish, rather than Uzbek, pastor. The church's application for registration was therefore blocked until this issue is resolved. The Tashkent International Protestant Church was denied registration because its members were not Uzbek citizens. However, the CRA gave permission for the church to meet and hold services. The church has appealed to the Presidential Commission on the Implementation of the Religion Law, which has authority to grant exceptions to the requirements of the law. By year's end, the Commission had not met.

At year's end, the Government had registered 1,979 religious congregations and organizations, 1,805 of which were Muslim. The 174 registered minority religious groups include 47 Korean Christian, 32 Russian Orthodox, 30 Pentecostal ("full gospel"), 23 Baptist, 10 Seventh-Day Adventist, 8 Jewish (1 Ashkenazy, 6 Bukharan, 1 mixed), 7 Baha'i, 4 Lutheran, 3 Roman Catholic, 2 Jehovah's Witnesses, and 2 Krishna Consciousness groups. Several of these congregations had fewer than the required 100 members but received exemptions from the requirement. An additional 335 applications had been denied, 323 of which were from Muslim groups. The number of mosques has increased significantly from the 80 or so permitted in the entire Soviet Union to 1,800 registered currently, but has decreased from the 4,000 or more that opened after the country gained independence and before registration procedures were in place.

Authorities tolerate many Christian evangelical groups, but often harass those that openly try to convert Muslims to Christianity. Police occasionally have broken up meetings of unregistered groups. Leaders of such groups have been assessed fines or even imprisoned. In August police allegedly detained a group of unregistered Baptists meeting in a private apartment in Chirchik for 2 days, during which police allegedly beat them. After a similar incident in October 1999 in Karshi, the Committee on Religious Affairs claimed that it took steps to ensure that police allow such Baptist congregations, which consider registration to be inconsistent with their religious beliefs, to meet undisturbed for worship.

In July police in Nukus, Karakalpakstan, arrested Nikolai Rodzinski, pastor of a small unregistered Baptist group, after allegedly planting narcotics in his bicycle pack; he was released in late September. Rodzinski came to the attention of the police because members of his congregation participated in a summer youth camp sponsored by the registered Korean Christian church "Mir." Karakalpak authorities closed the camp in July and in August ordered Pastor Vladimir Kim to close his church, on the grounds that the camp had taught religion to minors without parental consent, a violation of the religion law. Kim maintains that all parents had signed consent forms.

The Nukus Full Gospel Church has not reopened since the August 1999 presidential pardon of Pastor Rashid Turibayev, who had been imprisoned on religious and falsified narcotics charges. Nukus authorities have not returned the property confiscated in 1999 after Turibayev and two associates were convicted, and have not returned title to the church building to

the Full Gospel Church headquarters in Tashkent. Local observers claim that after their release, the three were subjected to regular police harassment. Turibayev now lives in Kazakhstan where he is preaching to a Full Gospel congregation.

Central government officials, as well as many Christian leaders, view these and other incidents of harassment as isolated cases of local officials misapplying the law.

The Government's most serious abuses of the right to religious freedom were committed against Muslims. The Government's campaign against independent Muslim groups, begun in the early 1990's, resulted in numerous serious human rights abuses during the period covered by this report. The campaign has been directed at three types of Muslims: Alleged Wahhabists, including those educated at medrassas (schools) abroad and followers of missing imams Nazarov of Tashkent and Mirzaev of Andijon; those suspected of being involved in the 1999 Tashkent bombings or of being involved with the IMU, whose roots are in Namangan; and suspected members of Hizb ut-Tahrir throughout the country.

The line between the so-called Wahhabists and those suspected of being involved in the 1999 bombings and the IMU insurgency in 2000 is not always apparent, even to an unbiased observer. Both Wahhabism and the IMU stem from the growth of independent Islam that the Government has sought to suppress since the early 1990's. Based on the court record, the distinction is that the Government considers the Wahhabists to be extremists and potential terrorists and those suspected of involvement in the bombings to be active terrorists. The Government does not consider repression of these groups to be a matter of religious freedom, but instead to be directed against those who oppose and even may take up arms against the political order. However, authorities are highly suspicious of those who are more pious than is the norm, including frequent mosque attendees, bearded men, and veiled women. In practice this approach results in abuses against many devout Muslims for their religious beliefs.

On September 5, President Karimov signed a decree promising full amnesty to repentant Uzbek citizens who have joined "terrorist groups under the influence of religious extremists" abroad, but who have not participated in the insurgency.

Following both the December 1997 murder of police officials in Namangan and the February 1999 terrorist bombings in Tashkent, police detained hundreds and perhaps thousands of suspected Wahhabists. The majority of those detained were released after questioning and detention that lasted as long as 2 months. The police routinely planted narcotics, ammunition, and, beginning in 1999, religious leaflets, on citizens to justify their arrest.

To determine whom to arrest, the Government used the local mahalla (neighborhood) committees as a source of information. Shortly after the February 1999 Tashkent bombings, President Karimov directed that each committee assign a "defender of the people," whose job it was to assure that young persons in the neighborhoods were not joining independent Islamic groups. The committees identified for police those residents who appeared suspicious. In an interview with the Associated Press in September, an official of the Committee on Religious Affairs said that the mahallas had identified 10,700 persons with extremist tendencies. Asked how mahalla officials know who is an extremist, the official replied "you can see it in their eyes." Human rights observers noted that in practice the committees often perceived as suspicious those same individuals who already had been detained by the police in the wake of either the 1997 murders of officials in Namangan or the 1999 Tashkent bombings, and who subsequently had been released because there was no evidence against them. There were dozens of cases involving persons who previously had been detained and released who were rearrested and tried during the year.

The absence of a free press and the rarity of public trials make it impossible to determine how many persons have been incarcerated. Nonetheless, the Moscow-based human rights organization, Memorial, has compiled a list of over 1,400 documented cases of persons allegedly imprisoned for political and religious reasons from January 1999 to April 2000 (see Section 1.e.). Memorial estimated that the total number of such prisoners was between 4,000 and 5,000. Human Rights observers estimate credibly that from 30 to 50 persons were convicted for alleged Islamic extremism each week during the reporting period. The number of those in pretrial detention is unknown but is probably several hundred. Nearly all those listed

were accused of being Muslim extremists. By the end of June of this year, the Government had convicted 128 persons for direct involvement in the bombing plot. Of these, at least 18 received death sentences, most of which reportedly have been carried out.

Pavlonazar Khodjaev was sentenced to death in May for allegedly having links to the IMU and helping plan a terrorist action near Yangiabad. Khodjaev's father had been imprisoned in 1999, according to human rights activists, because of his refusal to divulge to authorities the whereabouts of Pavlonazar and another of his sons. The elder Khodjaev was beaten to death in Jaslik prison in July 1999.

Abdurakhim Abdurakhmanov, an independent Tashkent imam and follower of Imam Nazarov, was arrested on or about April 27. The Government held him in incommunicado and did not inform his family of his whereabouts. Abdurakhmanov had been fired from his job as leader of the Kokoldash Madrassa in 1996 and was arrested, severely beaten, and imprisoned briefly in 1998 after police claimed to have found narcotics and a false passport on him. After the recent arrest, officials questioned his wife and sister-in-law, accusing them of Wahhabism. He was convicted in July and sentenced to 17 years in prison. At his trial he claimed that he was tortured.

A leading independent Muslim cleric, Imam Abidkhon Nazarov, has been missing since March 1998, when dozens of police and security agents raided and searched his home. Although his family claims that the security services abducted him, the Government and many observers believe that he fled to avoid arrest.

There was one new development in the October 1999 release of leading Islamic figure Imam Abduvakhid Yuldashev, who was re-arrested on July 23. Since his arrest he allegedly has been mistreated severely. He was held incommunicado for some 6 months and was twice beaten into signing documents refusing counsel. Another Islamic activist, Abdurauf Gafurov, remains free after his 1999 release.

There were no reported developments in the 1995 disappearance of Imam Abduvali Kori Mirzaev or the 1997 disappearance of his assistant, Nematjon Parpiev; or the 1992 disappearance of Abdullah Utaev, leader of the outlawed Islamic Renaissance Party.

Several persons arrested for religious reasons apparently died from mistreatment in custody (see section 1.a.).

Students who in 1997 and 1998 were expelled from schools for wearing religious dress were not allowed to re-enroll in 2000 (see Section 1.f.).

Synagogues function openly; Hebrew education (long banned under the Soviets), Jewish cultural events, and the publication of a community newspaper take place undisturbed.

d. Freedom of Movement Within the Country, Foreign Travel, Emigration, and Repatriation

The Constitution provides for free movement within the country and across its borders, and the Government generally respected these rights; however, at times it limited this right. Citizens must have permission from local authorities in order to resettle in a new city. The Government rarely grants this permission to those who wish to move to Tashkent. The Government requires citizens to obtain exit visas for foreign travel or emigration, but grants these permits routinely. All citizens have a right to a passport, and the Government does not restrict this right. The new passports serve as both internal identity cards and, when properly certified, as external passports. Every citizen must carry such a document when traveling inside or outside the country. Police occasionally confiscate these documents, severely restricting a person's right to travel.

Movement within the country of foreigners with valid visas generally is unrestricted. However, in mid-year, mountainous regions in the South and East of the country were closed to traffic because of the IMU insurgency. Visitors require special permission to travel to certain areas, such as Termez, on the Afghan border.

Several Uzbek human rights activists were able to leave and reenter the country without encountering problems from the Government. The Government has not returned the passport of human rights activist Mikhail Ardzinov which police had confiscated in June of 1999. This restricted his freedom of movement within the country and prevented him from attending international conferences.

The law on citizenship stipulates that citizens do not lose their citizenship if they reside overseas. However, since Uzbekistan does not provide for dual citizenship, those acquiring other citizenship lose Uzbek citizenship. In practice the burden is on returning individuals to prove to authorities that they have not acquired foreign citizenship while abroad. There were reports during the year that some ethnic Russians attempting to return after residing abroad were denied residence permits and new passports.

There is no law concerning the rights of refugees and asylum seekers, and the Government does not recognize the right of first asylum. The Government does not adhere to the 1951 Convention Relating to the Protection of Refugees and its 1967 Protocol. The Government considers asylum seekers from Tajikistan and Afghanistan to be economic migrants, and such individuals are subject to harassment and bribe demands when seeking to regularize their status. They may be deported if their residency documents are not in order. However, the Government agreed in August 1999 that it would not force those who have received U.N. High Commissioner for Refugees (UNHCR) mandate refugee status to leave the country. The UNHCR reports that the policy appears to be working, and that police rarely harass mandate refugees.

The population includes ethnic Koreans, Meskhetian Turks, Germans, Greeks, and Crimean Tartars deported to Central Asia by Stalin during World War II. These groups enjoy the same rights as other citizens. Although they are free to return to their ancestral homelands, absorption problems in those countries have slowed that return. Although there are no official statistics, observers including the UNHCR estimate that there are 30,000 Tajik and 8,000 Afghan refugees in the country. As of December 31, there were 1,351 UNHCR mandate refugees, with roughly 450 cases pending decision. According to the UNHCR there were no cases of forced repatriation of persons to a country where they feared persecution.

During the August conflict with the IMU, the Government ordered the evacuation of least five villages in the Surkhandarya region near the border with Tajikistan. After spending 2 months in a temporary camp, the villagers were transferred in November to a newly constructed settlement over 200 kilometers away. Conditions in the settlement are reportedly extremely poor and residents are suffering from a shortage of food. Several of the residents have told international observers that police have detained and beaten most of the men in an effort to find those who may have collaborated with the IMU. Estimates of the number in police detention at year's end ranged from 39 to over 120. One resident, Hazratkul Kodirov, died in late December, according to his brother, from injuries sustained during interrogation (see Section 1.a.).

Section 3 Respect for Political Rights: The Right of Citizens to Change Their Government

While the Constitution provides for this right, in reality citizens cannot change their government through peaceful and democratic means. The Government severely represses opposition groups and individuals and applies strict limits on freedom of expression. No opposition groups participated in government or were allowed to function legally.

The Government is highly centralized and is ruled by a strong presidency. President Karimov, formerly the first secretary of the Communist Party in Uzbekistan under Soviet rule, was elected in a limited multicandidate election in 1991. A 1995 Soviet-style referendum and subsequent parliamentary decision extended Karimov's first term until 2000. He was reelected in January to a second term with 92.5 percent of the vote. Karimov's opponent, Abdulhafiz Jalalov ran a token campaign, and admitted on election day that he himself had voted for Karimov. The Organization for Security and Cooperation in Europe (OSCE) declined to monitor the presidential election on the grounds that the preconditions did not exist for it to be free and fair.

President Karimov and the executive branch retain control through sweeping decree powers, primary authority for drafting legislation, and control of virtually all government appointments, most aspects of the economy, and the security forces.

Most government officials are members of the People's Democratic Party of Uzbekistan (PDP), formerly the Communist Party and still the country's largest party. However, the party as such does not appear to play a significant role in the Government, and the President resigned his chairmanship of the party in 1996. There are four other parties; however, these were created with government assistance and are loyal to President Karimov. All five parties participated in the December 1999 elections to the Oliy Majlis, during which 93 percent of the electorate reportedly cast their vote. However, parties that competed in the parliamentary elections, as well as the numerous independent candidates, were congenial to the Government and did not represent a real choice for voters.

Because the voters lacked a choice, the OSCE and many international observers concluded that the December 1999 legislative elections fell short of adherence to accepted standards of free and fair elections. Local and regional hokims (governors)--who are appointed by the president--exerted a strong influence on the selection of candidates and the conduct of campaigns. Nearly half (110 out of 250) of those elected were not from party lists but were either hokims themselves or were nominated by the hokims' local assemblies. Only 16 of the 250 winning candidates had been nominated by citizens' initiative groups. These candidates generally were allowed on the ballot only if the hokims approved them.

The Oliy Majlis is constitutionally the highest government body. In practice, despite assistance efforts by international donors to upgrade its ability to draft laws independently, its main purpose is to confirm laws and other decisions drafted by the executive branch rather than to initiate legislation.

New laws governing the conduct of parliamentary and presidential elections, as well as a law creating a Central Election Commission, came into effect in 1998. These laws, combined with the 1997 law on political parties, make it extremely difficult for opposition parties to come into being, to nominate candidates, and to campaign. The procedures to register a candidate are burdensome and the Central Election Commission has authority to deny registration. For example, a presidential candidate is prohibited from campaigning before being registered, but must present a list of 150,000 signatures in order to be registered. The Central Election Commission must deny registration of presidential candidates who are found to "harm the health and morality of the people." The 1998 statutes deleted a previous provision allowing recourse to the Supreme Court to candidates whose parties are denied registration. The Ministry of Justice has the right to suspend parties for up to 6 months without a court order.

Citizens initiative groups of 100 members or more may nominate candidates to the Parliament by submitting signatures of at least 8 percent of the voters in the electoral district. Other interest groups are forbidden from participating in campaigns and candidates may meet with voters only in forums organized by precinct election commissions. The 1998 laws repeal the right of parties to fund their candidates' campaigns directly. Instead, parties must turn over all campaign money to the Central Election Commission, which then distributes the funds equally among the candidates. Only the Central Election Commission may prepare and release presidential campaign posters. In August 1999, the Parliament enacted minor modifications to the election laws, but these have had little practical effect.

According to the Law on Political Parties, judges, public prosecutors, NSS officials, servicemen, foreign citizens, and stateless persons (among others) cannot join political parties. By law the Government prohibits formation of parties based on religion or nationality; those that oppose the sovereignty, integrity and security of the country and the constitutional rights and freedoms of citizens; or those that promote war, or social, national, or religious hostility. Political organizations that seek to overthrow the Government, or sow national or racial hatred, are prohibited. Moreover, the Government has refused to register democratic political opposition organizations. Membership in unregistered political organizations is not forbidden officially, but membership in unregistered organizations with a prohibited goal or premise is forbidden.

The Government continues to persecute members of unregistered, political opposition groups using such methods as arbitrary arrest, conviction on falsified charges, surveillance, and loss of employment. The leaders of the two largest unregistered opposition groups in the country--Mohammed Solikh of the Erk Democratic Party and Abdurakhim Polat of the Birlik Democratic Movement--were forced into exile in the early 1990's. After the February 1999 Tashkent bombings, persecution of members of these groups intensified. The Government repeatedly has accused Erk leader Solikh, who ran against Karimov for the presidency in 1992, of being a leader of the terrorist plot behind the bombings. Solikh was 1 of the 9

defendants-in-absentia in the November show trial of 12 alleged bombing conspirators. He was convicted and sentenced to 151/2 years in prison. Two of Solikh's brothers (Rashid and Muhammed Bekhjanov) were imprisoned since soon after the bombings and were convicted on political charges in August 1999, along with noted poet and former Solikh associate Mamadali Makhmudov and another defendant affiliated with the Birlik party.

Dozens of Erk and Birlik activists reported that after the bombings they were subjected to various forms of harassment: Frequent surveillance; restrictions on movement; searches of their homes; lengthy police interrogations; and, occasionally, detentions.

Traditionally, women participate much less than men in government and politics, and are underrepresented in these areas. There are 17 female deputies in the 250-member Parliament. There are 2 women (both with the rank of Deputy Prime Minister) among 28 members of the Cabinet; 1 is charged specifically with women's issues.

There are nine ethnic Russians or Ukrainians, six Karakalpaks, three Kazakhs, one Korean, and one Armenian in the Parliament.

Section 4 Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The Government restricts and harasses local NGO's working on human rights and refuses to register the country's two main human rights organizations. Both the Minister of Internal Affairs and the Minister of Justice accused publicly both local and international human rights organizations of giving support to the country's enemies.

In the verdict in the case of Kamoletdin Sattarov in Andijon in July, the court ordered destroyed 17 individual appeal forms from the U.N. High Commissioner for Human Rights that police had found in Sattarov's home on February 3. Uzbek citizens exercising their right to free speech had filled out six of these forms; eleven were blank. The prosecution treated the forms, as well as two Hizb ut-Tahrir leaflets, as evidence of Sattarov's antistate activities. He was sentenced to 9 years in prison. Upon appeal in August, the regional court voided the verdict of the Andijon court and ordered a new trial. In his retrial, Sattarov was sentenced to 10 years in prison, 1 year more than his original sentence. However, the judge ordered that the U.N. High Commissioner for Human Rights forms be returned to Sattarov's family. Sattarov's appeal of this verdict summarily reconfirmed the new sentence in December.

Security forces continue to harass and abuse human rights activists. The chairman of the HRSU, Abdumannob Polat, lives in voluntary exile. Neither the IHROU nor the HRSU resubmitted applications to register during the year. However, HRSU's attempt to hold a congress of its members, required in order to submit a new registration application, was blocked by local officials on December 22 (see Section 2.b.)

On December 21, President Karimov pardoned and released Mahbuba Kasimova, an IHROU human rights activist and member of the Birlik Democratic Movement. Kasimova, who had been sentenced to 5 years in prison in a 3-hour trial in July 1999, had received international attention as a political prisoner. There were no developments in the case of Ismail Adilov, another IHROU activist who was imprisoned in 1999 on charges widely believed to be fabricated.

One international human rights group, HRW, has permission to operate in the country and has had an office in Tashkent since 1996. The group operates independently and has no affiliation with the Government.

The Government registered one human rights NGO in 1996. The registered NGO, the Committee for Protection of the Rights of Individuals, was formed with the support of the Government but also has ties to opposition figures. Some sources affiliated with other groups have questioned its independence from the Government. The organization acts as the Uzbek affiliate of the International Society for Human Rights based in Germany.

Since 1997 there has been a human rights Ombudsman's office affiliated with the Parliament. The Ombudsman may make recommendations to modify or uphold decisions of state agencies, but the recommendations are not binding. The Ombudsman is prohibited from investigating disputes within the purview of courts. The Ombudsman replaced the parliamentary human rights commissioner, who had insufficient trained staff to carry out in-depth investigations of human rights violations and did not vigorously pursue allegations against the police and security forces. The office of the Ombudsman increased its staff and received authorization to open regional offices throughout the country. The Ombudsman issues reports identifying the most serious types of violations of human rights by government officials. The office claims that it has assisted hundreds of citizens in redressing human rights abuses, the majority of which involve allegedly unjust court decisions and claims of abuse of power by police and local officials. Most of the successfully resolved cases appear relatively minor. In February the current Ombudsman, Sayora Rashidova, sponsored a roundtable to discuss problems with the country's religion law. Non-state attendees included the mufti, the Russian Orthodox Church, academics, an international NGO, the OSCE, and various diplomatic missions.

The National Human Rights Center of Uzbekistan, created by presidential decree in 1996, has as its purpose to educate the population and government officials about the principles of human rights and democracy. The center's chief activity is to hold seminars and training, and it is not involved in human rights advocacy. The center has worked closely with international organizations such as the UNDP and the OSCE.

The Government is willing to discuss human rights matters with organizations such as the OSCE, as well as with foreign embassies. The UN has not sent human rights commission members or special rapporteurs to the country. The Government is generally willing to hold an open dialog with international human rights NGO's, and held several high-level discussions with representatives of HRW during 1999.

Section 5 Discrimination Based on Race, Sex, Religion, Disability, Language or Social Status

Both the Constitution and the 1992 law on citizenship prohibit discrimination on the basis of sex, religion, language, or social status; however, societal discrimination against women persists.

Women

Spousal abuse is common, but both local activists and the police say they have no statistics on the issue. At a September 1999 seminar on domestic violence, representatives of NGO's with crisis centers reported that the number of women seeking assistance is growing rapidly. Wife beating is considered a personal family affair rather than a criminal act, and thus such cases usually are handled by family members or elders within the community (mahalla) and rarely come to court.

In December a U.S.-based NGO, Minnesota Advocates for Human Rights, released a major study on Domestic Violence in Uzbekistan. While the lack of reporting prevented the authors from determining the number of cases annually, the study concluded that domestic violence is widespread and that the Government has failed to combat or even acknowledge the problem. Another U.S.-based NGO, Winrock International, which helps develop women's organizations in Uzbekistan, agreed with the conclusions of the study but noted that public officials were willing to speak openly about the problem of domestic violence in Uzbekistan.

Trafficking in women for the purpose of prostitution occurs, particularly to the Persian Gulf, Turkey and South Korea (see Section 6.f.). Prostitution within the country is a growing problem stemming from the worsening economic situation.

Due to tradition, women, particularly in rural areas, usually marry before age 20, bear many children, and confine their activities to within the family. In rural areas, women often find themselves working in the cotton fields during the harvest season. However, women are not impeded formally from seeking a role in the workplace. The barriers to equality for women are cultural, not legal, and women who open businesses or seek careers are not hindered legally.

Although the law prohibits discrimination against women, traditional cultural and religious practices limit their role in everyday society. For these reasons, women are underrepresented severely in high-level positions. In 1995 President Karimov issued a decree on measures to increase the role of women in society, particularly extending their participation in state and social administration and coordinating the activities of ministries and social organizations as they relate to women's issues. In this connection, a deputy prime minister position was created in 1995 charged with furthering the role of women in society. This cabinet level official is also head of the National Women's Committee. The edict also mandated the formation of regional women's committees throughout the country, headed by government-appointed officials. In September the National Women's Committee sponsored a meeting commemorating the fifth anniversary of the Beijing Conference. According to NGO participants at this meeting, the Government for the first time showed a willingness to work together with NGO's on a common plan of action.

The President declared 1999 to be the "year of the woman." In April 1999 the Government promulgated a law extending additional rights to women; it reduced the workweek to 35 hours for female employees of the State and reduced the optional retirement age for women to 54 years (after 20 years of employment). Government-sponsored activities also included a series of seminars, newspaper articles, public service announcements, and television programs that increased awareness of women's issues.

Several dozen NGO's address the needs of women. For example, the Businesswomen's Association in Tashkent, in addition to providing resources and information about developing small enterprises, operates a store that sells clothing and crafts. A center in Tashkent conducts seminars on sexual harassment, domestic violence, and the legal rights of women. Another center in Samarkand operates a crisis hot line and provides educational services on alcoholism, sexually transmitted diseases, and family counseling.

In parts of the country, some women and girls resort to suicide by self-immolation. There are no reliable statistics on the extent of this problem, since most cases go unreported. However, representatives of women's groups continue to observe an increase in self-immolation. After marriage many women or girls move into the husband's home, where they occupy the lowest rung on the family social ladder. A conflict with the husband or mother-in-law, who by tradition exercises complete control over the young bride, usually is the stimulus for suicide.

A 1997 research study indicated that the number of women enrolling in higher education was diminishing; for example, women's enrollment in the finance and banking institute dropped from 65 percent in 1991 to about 25 percent in 1997. Cutbacks in government funding to universities and the need for families to fund a higher percentage of educational costs leaves many families in the position of being able to fund the education of only one child, either a son or a daughter. The report stated that university faculty "steer" women into occupations traditionally performed by females and suggested that administrators may practice a policy of deliberately barring entrance to women in some fields.

Children

The Constitution provides for children's rights, stating that parents are obliged to support and care for their children until they reach majority at age 18. Traditional Uzbek values reinforce the cohesion of families; in most cases, several generations of a family live together. In theory the State provides free universal primary education and health care; however, in practice shortages and budget difficulties mean that some services must be paid for privately. The State grants monetary allowances to families based on their number of children. The country has a very high birth rate; over one-half of the population is under the age of 18.

Nine years of formal schooling are compulsory, and the average length of schooling is over 11 years. The U.N. Development Program reports that 100 percent of children complete secondary school.

There is no societal pattern of abuse of children. Trafficking in girls for the purpose of prostitution occurs (see Section 6.f.).

People with Disabilities

One of the country's first laws, adopted only 2 months after independence in 1991, provided support for the disabled. This law was aimed at ensuring that the disabled have the same rights as other citizens. However, little effort is made to bring the disabled into the mainstream. The State cares for the mentally disabled in special homes. The Government has not mandated access to public places for the disabled.

National/Racial/Ethnic Minorities

Government statistics dating from 1992 show that the population of approximately 23 million is about 71 percent Uzbek, 8 percent Russian, 5 percent Tajik, 4 percent Tatar, and 3 percent Kazakh, with many other ethnic groups represented. The statistics may underestimate the actual number of ethnic Tajiks. The figures treat ethnic Tajiks whose mother tongue was Uzbek as ethnic Uzbeks. Moreover, some Tajiks choose for a variety of reasons to declare themselves to be ethnic Uzbeks.

Ethnic groups other than Uzbeks, particularly Russians, frequently complain that job opportunities are limited for them. Senior positions in the government bureaucracy and business generally are reserved for ethnic Uzbeks, although there are numerous exceptions to this rule.

The 1992 citizenship law does not impose language requirements for citizenship. Nonetheless, the language issue remains very sensitive. Uzbek has been declared the state language, and the Constitution requires that the President speak Uzbek. However, the language law provides for Russian as "the language of interethnic communication." Russian is spoken widely in the main cities, and Tajik is spoken widely in Samarkand and Bukhara. The 1989 language law originally required that Uzbek would be the sole method of official communication by 1998, but subsequently was modified and now stipulates no specific date. The Government also is in the process of replacing the Cyrillic alphabet with the Latin alphabet. However, realizing the difficulties for Uzbeks and minorities alike, the Government has delayed the full transition to both the Uzbek language and the Latin alphabet to 2005.

Section 6 Worker Rights

a. The Right of Association

The 1992 law on unions specifically provides that all workers have the right voluntarily to form and join unions of their choice, and that trade unions themselves voluntarily may associate territorially or sectorally. Membership in trade unions is optional. The law also declares all unions independent of the State's administrative and economic bodies (except where provided for by law), and states that trade unions should develop their own charters, structure, and executive bodies and organize their own work.

However, in practice the overall structure of trade unions has not changed significantly since the Soviet era. Independence has eliminated subordination to Moscow but has not altered the centralized trade union hierarchy, which remains dependent on the Government. No alternative union structures exist.

A few new professional associations and interest groups have been organized, such as a union of entrepreneurs, a union of renters, and an association of private physicians and pharmacists. Registered professional associations for judges and lawyers formed in 1997; both organizations are quasi-governmental. An association of broadcasters that formed in 1998 has failed to gain government registration (see Section 2.b.). The main activity of all registered associations is professional development. They do not license members and have no formal role in advocating the interests of members in relation to the Government.

According to the law, the Council of the Federation of Trade Unions (CFTU) has a consultative voice in the preparation of all legislation affecting workers and is entitled to draft laws on labor and social issues. Trade unions are described legally as organizations that defend the right to work and to protect jobs. They have lost their previous role in state planning and in the management of enterprises. The emphasis now is on the unions' responsibility for "social protection" and social justice--especially unemployment compensation, pensions, and worker retraining.

The trade union law does not mention strikes or cite a right to strike. However, the law does give the unions oversight for both individual and collective labor disputes, which are defined as those involving alleged violations of labor laws, worker rights, or collective agreements.

There were no reports of strikes. This circumstance likely reflects the absence of truly representative trade unions, as the standard of living fell and growing unemployment raised social tensions. The absence of labor activism also reflects the Communist legacy of docility in the face of authority. However, both union and government officials assert that the lack of strikes reflects general support for the Government's policies and common interest in social stability.

The 1992 law on unions provides that unions may choose their own international affiliations; however, none have done so.

b. The Right to Organize and Bargain Collectively

Trade unions may conclude agreements with enterprises. Privatization is still in its very early phase. As a result, there is no experience with negotiations that could be described as adversarial between unions and private employers. The State is still the major employer, and the state-appointed union leaders do not view themselves as having conflicts of interest with the State.

The Ministry of Labor and the Ministry of Finance in consultation with the CFTU, set the wages for various categories of state employees. In the small private sector, management establishes wages or negotiates them with those who contract for employment.

The law forbids discrimination against union members and their officers.

There are no export processing zones.

c. Prohibition of Forced or Compulsory Labor

The Constitution specifically prohibits forced labor, including by children, except as legal punishment or as may be specified by law; however, some abuses including trafficking in women and girls for the purpose of forced prostitution occur (see Section 6.f.). No statute specifically prohibits forced and bonded labor by children, and large-scale compulsory mobilization of youth and students (by closing schools) to help with the cotton harvest continues. Student labor is paid poorly, and students sometimes must pay for their food. Adults, including teachers and passersby in automobiles and busses, similarly are forced into the harvest effort.

d. Status of Child Labor Practices and Minimum Age for Employment

The minimum working age is 16 years; 15-year-olds can receive state permission to work but have a shorter workday. In rural areas, younger children and the elderly often help to harvest cotton and other crops (see Section 6.c.). The Labor Ministry has an inspection service, which is responsible for enforcing compliance with these and other regulations governing employment conditions, and enforces them effectively.

The law prohibits forced and bonded labor by anyone, including children; however, trafficking in girls for forced prostitution and compulsory mobilization for the cotton harvest occur (see Section 6.c.).

e. Acceptable Conditions of Work

The Ministry of Labor, in consultation with the CFTU, sets the minimum wage. As of September 1, it was less than \$4 (2,450 soum) per month. The minimum wage is not sufficient to provide a decent standard of living for a worker and family.

The standard workweek is set at 41 hours and requires a 24-hour rest period. Some factories apparently have reduced work hours in order to avoid layoffs. Overtime pay exists in theory but is not always paid.

Pay arrearages of 3 to 6 months are not uncommon for workers in state-owned industries. The problem appears to be growing.

The Labor Ministry establishes occupational health and safety standards in consultation with the unions. There is a health and safety inspectorate in the Ministry. The local press occasionally published complaints about the failure of unions and government authorities to do enough to promote worker safety. Although written regulations may provide adequate safeguards, workers in hazardous jobs often lack protective clothing and equipment. Workers are permitted to leave jobs that are hazardous without jeopardizing their employability in other jobs; however, in practice, high rates of underemployment make such action difficult.

f. Trafficking in Persons

There are no laws relating specifically to trafficking in persons. Trafficking in women and girls for the purpose of forced prostitution occurs, particularly to the Persian Gulf, South Korea, and Turkey (see Section 5). However, there are no reliable statistics on this problem, and it does not seem to be carried out on a large scale. Uzbekistan is a source country, but not a destination or transit point, for trafficking in persons. The Government has not had occasion to assist with international investigations of trafficking or to extradite citizens accused of trafficking in other countries.

Anecdotal reports from NGO's indicate that the number of young women from Uzbekistan who are forced into prostitution abroad is growing. The Government has not acknowledged the problem publicly, but has taken some measures to combat it. According to NGO representatives, the police force in Samarkand formed a special unit on trafficking in women in 1998, but the unit's effectiveness is hampered by a lack of resources. Border guards at airports were directed to give more scrutiny to unaccompanied young women traveling to Turkey, the United Arab Emirates, and South Korea; they are authorized to deny such women permission to leave the country. There is no government program to educate or assist potential victims; however, the State University for World Economy and Diplomacy sponsored a series of lectures on domestic violence and trafficking in women during the year.

[End.]

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